



CHAPTER cviii.

An Act for incorporating and conferring powers A.D. 1925.
on the Uckfield Gas and Electricity Company. —
[7th August 1925.]

WHEREAS the Uckfield Gas Company Limited (in this Act referred to as "the Limited Company") were in the year eighteen hundred and fifty-eight incorporated under the Joint Stock Companies Act 1856 for the purpose (amongst other things) of manufacturing and supplying gas in Uckfield :

And whereas the capital of the Limited Company is nine thousand pounds divided into one thousand eight hundred shares of five pounds each the whole of which shares have been issued and are fully paid up :

And whereas the Limited Company have borrowed on mortgage of their undertaking by the issue of debentures sums amounting in the aggregate to one thousand nine hundred pounds :

And whereas on the issue of some of such shares the Limited Company have received by way of premium the sum of one thousand and ninety-two pounds five shillings and tenpence upon which they have not paid any dividend or interest :

And whereas the Limited Company have provided out of undivided profits upwards of three thousand pounds which they have expended in extending enlarging and improving their works or are now using as working capital which expenditure is properly chargeable against capital :

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— And whereas it is reasonable that stock in the Company representing in part the sums so expended on the undertaking as aforesaid be created and distributed rateably amongst the present members of the Limited Company in the manner and under the conditions in this Act prescribed and set forth :

And whereas the Limited Company are not at present subject to any restriction as to the dividends to be paid to the members of the Limited Company and it is expedient that the dividends payable on the capital of the Company authorised by this Act be subject to the restrictions in this Act contained :

And whereas the demand for gas in the urban district of Uckfield supplied by the Limited Company has increased and is increasing and other parishes and places in the neighbourhood are wholly without a supply of gas and can be conveniently supplied from the works of the Company and it is expedient that the works and mains of the Limited Company be extended and improved and that additional capital be raised for such extension and improvement :

And whereas the supply of electricity within the limits of this Act would be of public and local advantage :

And whereas it is expedient that the Limited Company be dissolved and re-incorporated with further powers and be authorised to supply gas and electricity within the limits defined by this Act :

And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Uckfield Gas and Electricity Act 1925.

2. This Act shall be deemed to be a special Act within the meaning of the Electricity (Supply) Acts 1882 to 1922 and the Electric Lighting (Clauses) Act 1899 so far as the provisions of those Acts are applicable to or incorporated with this Act.

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Application of Electricity (Supply) Acts.

3. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

Incorporation of general Acts.

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital);

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:—

And the said provisions shall so far as the same are respectively applicable apply to any ordinary and preference stock issued under the powers of this Act;

The Gasworks Clauses Act 1847 (except sections 30 to 38 inclusive) Provided that section 13 thereof shall be read and have effect as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount to all consumers of gas supplied in like circumstances and for the same purposes” were added at the end of that section;

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof);

The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule);

The Lands Clauses Acts (except the provisions with respect to the purchase and taking of lands otherwise than by agreement).

4. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated

Interpretation.

A.D. 1925. herewith have the same respective meanings And the expressions—

“The Company” means the Uckfield Gas and Electricity Company incorporated by this Act;

“The Limited Company” means the Uckfield Gas Company Limited;

“The limits of supply” means the limits for the time being for the supply by the Company of gas or electricity as the case may require;

“The directors” means the directors of the Company;

“The appointed day” means the first day of January one thousand nine hundred and twenty-six;

“The gas undertaking” and “the electricity undertaking” mean respectively the gas undertaking and the electricity undertaking of the Company by this Act authorised;

“The undertaking” where used in this Act includes the gas undertaking and the electricity undertaking and when construing the provisions of the Gasworks Clauses Acts 1847 and 1871 and the Electricity (Supply) Acts 1882 to 1922 and the schedule to the Electric Lighting (Clauses) Act 1899 means the gas undertaking and the electricity undertaking respectively;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery;

“The calorific value of gas” means the number of British thermal units (gross) produced by the combustion of one cubic foot of the gas measured at sixty degrees Fahrenheit under a pressure of thirty inches of mercury and saturated with water vapour.

INCORPORATION.

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5. As from the appointed day the Limited Company shall be dissolved and the several persons who immediately before the appointed day were members of the Limited Company and all other persons who have subscribed to or shall become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby incorporated by the name of "the Uckfield Gas and Electricity Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

Incorporation of Company.

6. The Company shall be established for the purposes of manufacturing generating storing and supplying gas and electricity for lighting heating motive power and other purposes within the limits of supply and generally may carry on any business usually carried on by a gas or electricity company or which is or may become incidental thereto and may carry the powers of this Act into execution.

General purposes of Company.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the appointed day are vested in the Limited Company or any person in trust for them or to which the Limited Company are in anywise entitled and all pipes plant apparatus stocks matters and things which have been purchased or provided by and are immediately before the appointed day the property of the Limited Company and all moneys securities credits effects and other property whatsoever which immediately before the appointed day belong to the Limited Company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the appointed day in force and the undertaking of the Limited Company shall on and from the appointed day and subject as hereinafter provided be by virtue of this Act transferred to and vested in the Company to the same extent and for the same estate and interest as the

Property of Limited Company vested in Company.

A.D. 1925. same are previously to the appointed day vested in the Limited Company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed and dealt with by the Company as they think fit Provided that all pipes works and apparatus which shall at the appointed day have been laid down or placed by the Limited Company in or under any street within the limits of supply shall be deemed to have been lawfully laid down or placed therein by the Company in pursuance of and in accordance with the provisions of this Act.

Memorandum and articles of association of Limited Company to be void.

8. Subject to the provisions of this Act and as from the appointed day the memorandum and articles of association of the Limited Company shall as to any prospective operation be wholly void and the Limited Company and the shareholders thereof shall be exempted from all the provisions restrictions and requirements thereof But nothing in this Act contained shall affect the previous operation of the said memorandum and articles or anything done or suffered or any right obligation or liability acquired accrued or incurred thereunder and with respect to all such rights obligations and liabilities the Company and the proprietors thereof and the property of the Company shall to all intents and purposes represent the Limited Company and the members thereof as such and the property of the Limited Company.

Contracts prior to appointed day to be binding.

9. All purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the appointed day by to or with the Limited Company or any trustee or person acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and in force at the appointed day shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or the trustee or person acting on behalf of the Limited Company the Company had been a party thereto.

Actions &c. not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the Limited Company

or any member thereof in relation to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the appointed day and any such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the Limited Company or any member thereof if this Act had not been passed the Company and the proprietors thereof being in reference to the matters aforesaid in all respects substituted for the Limited Company and their members respectively.

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11. Every person who (being authorised so to do) before the appointed day entered into any bond covenant contract or engagement on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put to by reason of his having entered into such bond covenant contract or engagement.

Indemnity.

12. From and after the appointed day the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the appointed day were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Company to satisfy liabilities of Limited Company.

13. All gas rents and sums of money which immediately before the appointed day were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of gas rents &c.

14. All persons who immediately before the appointed day owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately

As to payment of debts owing before appointed day.

A.D. 1925. before the appointed day were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable with all interest (if any) due or accruing upon the same shall be paid by or be recoverable from the Company.

Certificates
&c. to
remain in
force.

15. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the provisions of this Act) and all sales transfers and dispositions made or executed before the appointed day for and with respect to any shares in the Limited Company shall remain in full force and continue and be available in all respects as if the said memorandum and articles had not been avoided.

Books &c.
continued
evidence.

16. All documents books and writings which if the said dissolution annulment repeal and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution annulment repeal and avoidance.

Present
registers of
members to
be con-
tinued.

17. The books kept by the Limited Company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until a new register of stockholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Officers to
continue till
removed.

18. All officers and servants of the Limited Company who shall be in the employ of the Limited Company at the appointed day shall as from the appointed day hold under the Company the same respective offices and employments on the same terms and conditions as they held under the Limited Company on that day and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

CAPITAL.

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19. The capital of the Company shall be forty thousand pounds of which capital ten thousand eight hundred pounds is in this Act called "the original capital" and shall be substituted for the existing share capital of the Limited Company and twenty-nine thousand two hundred pounds is in this Act called "the additional capital" and may be raised in manner in this Act mentioned. Capital.

20.—(1) On the appointed day there shall be created by virtue of this Act and without any further or other authority ten thousand eight hundred pounds gas ordinary stock and such stock shall be divided among and vested in the several persons who immediately before the appointed day were registered as holders of the ordinary shares of the Limited Company in the proportion of six pounds of such stock for each five pound share held by them respectively. Allocation
of original
capital.

(2) All stock so created and vested shall be deemed to be fully paid up and shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the appointed day affected the share or shares for which the same is substituted and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition made before the appointed day and affecting any such share or shares and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock substituted for such share or shares.

21. Trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares in the Limited Company are hereby expressly authorised and required to accept the stock vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the Limited Company for which such stock is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act. Trustees to
accept sub-
stituted
stock.

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Exchange of
certificates.

22. The Company shall call in and cancel the existing certificates of shares in the Limited Company and issue in lieu thereof certificates of the stock to which the holders of such shares are by this Act respectively entitled but no holder of any such share or shares shall be entitled to any certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the existing certificate or certificates of proprietorship of the share or shares in the Limited Company issued to him before the appointed day or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof but if any holder of any such existing share or shares neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the Limited Company the Company may retain any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for such share or shares until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and an indemnity is given against any claim in respect of such lost or destroyed certificate or certificates to the satisfaction of the directors.

Power to
raise additional
capital.

23. The Company may from time to time apportion the additional capital to the gas undertaking and the electricity undertaking in such amounts as they may from time to time think fit and may from time to time raise the amounts of additional capital so apportioned by the creation and issue at their option of additional gas ordinary stock or gas preference stock or electricity ordinary stock or electricity preference stock or wholly or partially by one or other of those modes respectively but no such stock shall vest in the person accepting the same until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty-nine thousand two hundred pounds.

24.—(1) During a period of three years from the passing of this Act or such extended period as the Electricity Commissioners may allow the Company may subject to such conditions as those Commissioners may think fit to impose offer any stock in the electricity capital created under the provisions of the section of this Act of which the marginal note is “Power to raise additional capital” for subscription by the public and upon any such offer may pay a commission not exceeding five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such stock or procuring or agreeing to procure subscriptions whether absolute or conditional for any such stock :

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Power to
offer elec-
tricity
capital for
subscription
and to pay
commission.

Provided that the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Company inviting subscriptions for such stock.

(2) Nothing in this section shall affect any power of the Company to pay brokerage.

25.—(1) Except as provided by the last preceding section of this Act all stock created under the powers of the section of this Act of which the marginal note is “Power to raise additional capital” shall be issued in accordance with the provisions of this section.

New stock
to be sold
by auction
or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of each urban or rural district council within the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in one or more local newspapers circulating within the limits of supply ;

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less

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than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;

- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas or electricity supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

26. All stock in the additional capital created by the Company under this Act shall be part of the general capital of the Company and save as is otherwise provided by this Act the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their stock and be subject to the like provisions and liabilities as the holders of other stock of the Company of the same class and description.

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 New ordinary and preference stock to be part of general capital.

27.—(1) The Company may without further or other authority borrow on mortgage of the undertaking in respect of the ten thousand eight hundred pounds gas ordinary stock by this Act created any sum or sums not exceeding in the whole (inclusive of the sum of one thousand nine hundred pounds borrowed by them up to the twenty-fifth day of March one thousand nine hundred and twenty-five) the sum of five thousand four hundred pounds which shall be applied to the purposes of the gas undertaking.

Power to borrow.

(2) The Company may also subject to the provisions of this Act borrow on mortgage of the gas undertaking and the electricity undertaking respectively any sum or sums not exceeding in the whole one half of the additional capital which at the time of borrowing has been raised for those undertakings respectively under the powers of this Act and all sums so raised shall be applied to the purposes of the undertaking on the security of which the same is borrowed but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock in respect of which it is proposed to borrow together with the premium (if any) realised or after allowing for the discount (if any) given on the sale thereof has been fully paid up.

28. All debentures granted by the Limited Company before the appointed day and subsisting at the appointed day shall during the continuance of such debentures and subject to the terms thereof remain charged on the gas undertaking and have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act in respect of the gas undertaking and shall

Priority of existing debentures.

A.D. 1925. have no claim against the electricity undertaking but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company in respect of the gas undertaking.

Arrears to be enforced by appointment of a receiver.

29. The mortgagees of the gas undertaking and the electricity undertaking respectively may enforce payment of arrears of interest or principal or principal and interest due on their debentures or mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Debenture stock.

30. The Company may create and issue debenture stock in respect of the gas undertaking and the electricity undertaking respectively subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act in respect of the gas undertaking and the electricity undertaking respectively shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall subject as is mentioned in the section of this Act of which the marginal note is "Priority of mortgages over other debts" have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

31. All moneys raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time forming part of the gas undertaking or the electricity undertaking as the case may be over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by

them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock. A.D. 1925.
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32. All moneys raised under this Act for the purposes of the gas undertaking or the electricity undertaking (as the case may be) including premiums shall be applied only to purposes of the undertaking in respect of which the same is raised to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the gas capital or electricity capital of the Company entitled to dividend. Application
of moneys.

33.—(1) The Company may create and issue all or any of the preference stock or debenture stock authorised to be created and issued under the powers of this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose. Redeemable
preference
or debenture stock.

(2) If it is so provided in the resolution the Company may—

(a) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue (subject as regards preference stock to the provisions of the section of this Act of which the marginal note is “New stock to be sold by auction or tender”) new stock (either redeemable or irredeemable) or re-issue stock originally created and issued under this section. Provided that the creation and re-issue for the purpose of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create.

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(3) The Company shall not redeem out of revenue any debenture stock or preference stock created under this Act.

Multiples of stock.

34.—(1) Any transfer of stock of the Company may be in multiples of one pound so long as, by such transfer no holding of any stockholder of the Company is rendered less than five pounds of stock.

(2) Notice of the effect of this section shall be stated in all stock certificates of the Company.

ACCOUNTS AND DIVIDENDS.

Separate accounts of gas and electricity undertakings.

35. Separate accounts in respect of capital expenditure and in respect of revenue shall be kept of the gas undertaking and the electricity undertaking respectively.

The expenses of direction and management and other common expenses whether on capital or revenue account shall be from time to time properly apportioned between and shown separately in the capital account or in the profit and loss account of the gas undertaking or of the electricity undertaking as the case may require and the auditors of the Company when making their report on or confirming the annual accounts of the Company shall also report whether or not such apportionment has been properly carried out.

Gas profits of Company limited.

36.—(1) The profits of the Company to be divided among the holders of such of the additional capital to be raised under the powers of this Act as shall be issued as gas preference capital shall not in any year exceed the rate of six pounds in respect of every one hundred pounds actually paid up of such capital.

(2) Except as by this Act provided the profits of the Company to be divided among the holders of gas ordinary capital (in this Act referred to as “the divisible gas profits”) shall not in any year exceed the following rate (which is in this Act referred to as “the standard rate of gas dividend”) (that is to say):—

On the original capital and on such of the additional capital to be raised under the powers of this Act as shall be issued as gas ordinary capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital.

37. If the clear profits of the gas undertaking in any year amount to a larger sum than is sufficient to pay the dividend on any gas preference capital and the dividend at the authorised rates on the gas ordinary capital of the Company the excess shall be left at the credit of the profit and loss (net revenue) account of the gas undertaking and be carried forward to the next following year : A.D. 1925.
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Application of excess of profits over authorised rates of dividend.

Provided that it shall not be lawful for the Company to carry forward at the end of any year to the credit of the said account any sum exceeding the total of the following amounts (that is to say) :—

- (a) The amount required by the Company for paying any dividend or interest on moneys borrowed for the purposes of the gas undertaking which the Company are entitled or required to pay but have not paid in respect of that year;
- (b) An amount equal to the total sum which the Company would be lawfully entitled to distribute as dividends on their preference and ordinary gas capital in respect of the next following year having regard to the price charged by them for gas at the commencement of that year; and
- (c) An amount equal to the total sum which the Company will be required to pay during the next following year as interest on any gas mortgages or debenture stock.

38.—(1) The Company may in each year set apart out of the divisible gas profits and out of the profits of the electricity undertaking respectively such sums as they shall think fit and all sums (if any) so set apart by the Company may be invested in any statutory securities or in such other manner as shall be authorised by a resolution of the Company and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the funds so formed shall be called “the gas reserve fund” and “the electricity reserve fund” respectively and shall be applicable to the payment of dividend in any subsequent year in respect of the gas capital and the electricity capital respectively. Power to create gas and electricity reserve funds.

(2) Any reserve or other fund of the Limited Company existing at the appointed day shall be credited to the gas reserve fund.

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Power to
create
special pur-
poses funds.

39.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the gas undertaking and out of the revenue of the electricity undertaking respectively as part of the expenditure on those respective revenue accounts any sum not exceeding an amount equal to one per centum of the paid-up capital moneys appropriated to those undertakings respectively to funds to be called “the gas special purposes fund” and “the electricity special purposes fund” respectively.

(2) The special purposes funds shall be applicable only to meet such charges in respect of the gas undertaking and the electricity undertaking respectively as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes funds shall not at any time exceed amounts equal to one-tenth part of the paid-up capital moneys appropriated to the gas undertaking and the electricity undertaking respectively.

(4) The moneys forming the special purposes funds or any portion thereof may be invested in statutory securities or may be applied for the general purposes of the gas undertaking and the electricity undertaking respectively to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to either of the special purposes funds notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) For the purposes of this section the paid up capital moneys appropriated to the gas undertaking at the appointed day shall be deemed to be the sum of ten thousand eight hundred pounds being the nominal amount of gas ordinary stock in the original capital of the Company created by this Act which represents the share capital of the Limited Company.

40. For the purposes of section 15 (Accounts and returns) of the Gas Regulation Act 1920 the accounts and returns relating to the gas undertaking shall be made up to the thirty-first day of December in each year or such other date as the Board of Trade after consultation with the Electricity Commissioners shall determine to be most convenient.

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 Date for making up gas accounts and returns.

41. Notwithstanding anything contained in the Acts incorporated with this Act the Company shall not be under any obligation to prepare or to submit to their stockholders or auditors statements of accounts or balance sheets or to hold ordinary general meetings more than once a year and anything which under the Acts incorporated with this Act is authorised to be required to be done at a general meeting of the Company to be held at any specified time may be done at the annual general meeting of the Company at whatever time held.

Removal of obligation to prepare half-yearly accounts and hold half-yearly meetings.

42. The directors may close any register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend or to the date on which interest on the stock to which the register relates shall be payable and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer book in which the same is to be registered is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or to the date on which the interest is payable.

Closing of transfer books previous to declaring interim dividend or paying interest.

43. Where any debenture stock of the Company whether issued before or after the passing of this Act is registered in the names of more than one person as holders thereof the receipt of any of the registered holders of such debenture stock shall in the event of no notice to the contrary being served upon the Company from the other or others of such registered holders be a sufficient discharge to the Company for any interest payable in respect of such debenture stock the receipt whereof is acknowledged by such receipt.

As to receipts for interest on debenture stocks standing in more than one name.

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Interim
dividends.

44. The directors may in any year declare and pay an interim dividend on any class or classes of stock in the gas capital or the electricity capital of the Company out of the profits of the gas undertaking or the electricity undertaking as the case may require without the sanction or direction of a general meeting.

MEETINGS.

Ordinary
meetings.

45. The first ordinary meeting of the Company shall be held within six months after the appointed day and all subsequent ordinary meetings of the Company shall be held yearly in the month of March in every year at the Company's principal office or at such other place as shall be from time to time appointed for that purpose by an order of the directors.

Quorum of
general
meetings.

46. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be ten stockholders present in person or not less than two stockholders personally present and representing by proxy such other members of the Company as with those personally present will amount to not less than ten in the whole.

Votes.

47.—(1) A holder of stock in the gas capital and a holder of stock in the electricity capital shall not be entitled by virtue of their respective holdings to vote on any question relating exclusively to the affairs of the electricity undertaking or the gas undertaking respectively.

(2) Subject to the provisions of subsection (1) of this section at all general meetings of the Company every holder of gas ordinary stock and electricity ordinary stock in the capital of the Company shall have one vote for every complete five pounds of such stock held by him.

(3) Subject to the provisions of subsection (1) of this section and except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned.

As to ap-
pointment
of proxies.

48. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the stockholder and

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Joint holders.

DIRECTORS AND AUDITORS.

As to
directors.

(2) The continuing directors may act notwithstanding any vacancy in the number of directors.

(3) The quorum of a meeting of directors shall be two.

(4) The qualification of a director shall be the possession in his own right or in the joint right of himself and another of ordinary or preference stock of the Company to the nominal amount of not less than one hundred pounds. Provided that the qualification of at least three of the directors shall be in gas capital of the Company.

(5) If any of the directors shall be made bankrupt or shall go to reside abroad for a longer period than six months or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for twelve months (unless such neglect to attend be occasioned

A.D. 1925. — by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

First
directors.

51. Thomas Albert Bannister Henry Rice George Arthur Warburton Frederick William Gould and George Edwin Thurston and one other person to be nominated by them shall be the first directors of the Company and shall continue in office until the first ordinary meeting of the Company.

Election of
directors.

52. Subject to the provisions of this Act at the first ordinary meeting of the Company the stockholders present in person or by proxy may either continue in office the directors appointed by or in pursuance of this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by or in pursuance of this Act being if they continue qualified eligible for re-election and at the ordinary meeting to be held in every year after the first ordinary meeting the stockholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

As to ap-
pointment
of managing
directors.

53.—(1) The directors may appoint one or two of their body to be managing director or managing directors of the Company or of the gas undertaking and the electricity undertaking or either of them either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes. A.D. 1925.
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(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

54.—(1) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined or if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity. As to qualification of directors.

(2) No director shall be disqualified from acting by reason of the fact that he has entered into a contract with the Company for the supply and consumption of gas and electricity or either of them.

55. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Directors may determine remuneration of secretary.

A.D. 1925.
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Auditors.

56.—(1) The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold stock of the Company but nothing in this section shall prevent any person who at the date of the passing of this Act is an auditor of the Limited Company being appointed or continuing to act as an auditor of the Company.

(2) The auditor or auditors who shall be appointed or continue to act as auditor or auditors of the Company under this section shall be the auditor or auditors within the meaning and for the purposes of section 6 of the schedule to the Electric Lighting (Clauses) Act 1899.

LIMITS OF SUPPLY.

Limits of
supply.

57.—(1) The limits for the supply of gas and electricity by the Company shall be—

- (a) for the supply of gas the area specified in Part I. of the First Schedule to this Act; and
- (b) for the supply of electricity the area specified in both Parts of that schedule.

(2) Within three months after the passing of this Act the Company shall deposit at the office of the Electricity Commissioners an Ordnance map on a scale of not less than one inch to the mile with the limits for the supply of electricity by the Company marked thereon.

GASWORKS.

Powers as
to construc-
tion and
mainten-
ance of gas-
works &c.

58.—(1) Subject to the provisions of this Act the Company may upon the lands described in the Second Schedule to this Act maintain and erect alter extend improve and renew the gasworks of the Limited Company and other gasworks with all necessary machinery and apparatus and may do all such acts as may be proper for making and storing gas and for supplying gas within

the limits of supply and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them. A.D. 1925.
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(2) The Company may also—

(a) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual products so purchased by the Company in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them; and

(b) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

59. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act : Power to lay gas pipes in private streets.

Provided that the Company shall not exercise the powers in this section with respect to any street belonging to the Southern Railway Company except with the consent of the railway company which consent shall not be unreasonably withheld.

60. The Company may within the limits of supply lay down and repair take up relay or renew pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them Power to lay pipes for ancillary purposes.

A.D. 1925. in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid as incorporated with this Act and so far as they are applicable for the purposes of this section shall apply mutatis mutandis to and for the purposes thereof :

Provided that the Company shall not break up under the powers of this section any main road or interfere with any county or main road bridge without the consent in writing of the highway authority or if such consent is withheld without the consent of the Board of Trade but that Board before giving their consent shall give the highway authority an opportunity of being heard.

For protec-
tion of East
Sussex
County
Council.

61. For the protection of the county council of East Sussex (in this section referred to as "the council") the following provisions shall have effect (that is to say) :—

- (1) All mains pipes and works to be laid in under or along any main road or in upon or across any county or main road bridge (which expression shall in this section include the roadway over such bridge and the approaches thereto) shall be laid in such position in or at the side thereof and at such depth as the council in writing under the hand of their surveyor may reasonably direct :
- (2) The notice required by the eighth section of the Gasworks Clauses Act 1847 shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of emergency) be not less than in the case of a bridge fourteen days and in all other cases seven days :
- (3) The plan required by the ninth section of the last mentioned Act shall be delivered to the council or their surveyor by the Company not less than in the case of a bridge fourteen days and in all other cases seven days before the Company commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the

A.D. 1925.

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A D. 1925.
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works in over or across or attached to such bridge in such manner and to such extent as may be agreed upon between the council and the Company or in case of difference as shall be determined by arbitration in the manner hereinafter prescribed. Provided that during the removal alteration rebuilding widening or reparation of such bridge the council shall afford all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains pipes or works and when the rebuilding altering widening or repairing of such bridge shall have been completed the Company shall have the same rights and powers with respect to such bridge as they had before the works were carried out :

- (7) All mains pipes and works shall be so laid and executed by the Company that so far as reasonably practicable the traffic on any main road or over any county or main road bridge shall not be impeded or interfered with :
- (8) The Company shall pay to the council the reasonable expenses incurred by them in relation to the reasonable superintendence by the council or their surveyor of any works to be done by the Company under the provisions of this section :
- (9) The council shall not except in case of negligence be liable for or in respect of any injury which may be caused to any existing mains pipes or works of the Company by or in consequence of the use by the council of a steam roller or other machine for or in connection with the reconstruction alteration maintenance improvement or repair of any main road or any county or main road bridge :
- (10) If any difference at any time arises between the council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed

by the Minister of Transport on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid. A.D. 1925.
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62. The provisions of the section of this Act of which the marginal note is "For protection of East Sussex County Council" shall also apply and have effect for the protection of the urban district council of Uckfield as if the said district council were therein referred to in lieu of the county council. For protec-
tion of Uck-
field Urban
District
Council.

63. For the protection of the Southern Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the Company and the railway company have effect (that is to say):— For protec-
tion of
Southern
Railway
Company.

(1) On or before the thirty-first day of March one thousand nine hundred and twenty-six the Company shall sell and the railway company shall purchase for the sum of one hundred and twenty pounds the portion of the lands described in the Second Schedule to this Act which abuts upon the goods yard of the railway company at Uckfield and contains twenty-five perches or thereabouts and is coloured pink on a plan which has been signed in duplicate by George Ernest Hart on behalf of the Company and Alfred Weeks Szlumper on behalf of the railway company. Such sale and purchase shall be subject to the observance and performance by the railway company of the stipulations and conditions endorsed on the said plan and from and after the completion of such purchase the said portion of the said lands shall cease to form part of the lands which the Company may use for the manufacture or storage of gas or residual products or the generation of electricity :

(2) The railway company shall not disturb or seek to disturb the Company in the exercise and enjoyment of the privileges now enjoyed by the Limited Company of access to the gasworks and of maintaining altering renewing and using gas pipes in through and under the said goods yard :

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- (3) In this section the expression "the works of the Company" means all works (including works of maintenance repair renewal or removal of works constructed or laid down either before or after the passing of this Act in connection with the gas undertaking) executed in pursuance of this Act or of any Act incorporated therewith which involve interference with the railways bridges roads and works of the railway company (in this section together referred to as "the railways of the railway company") :
- (4) The works of the Company shall be executed under the superintendence (if such be given) and to the reasonable satisfaction of the principal engineer of the railway company (in this section referred to as "the engineer") at such times as shall be previously submitted to and shall be approved by him in writing and (except in cases of emergency) according to plans and sections to be previously submitted to and reasonably approved by him or in case of difference determined by arbitration in manner hereinafter provided. Provided that if the engineer does not express his approval or disapproval of the said plans and sections within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof :
- (5) The works of the Company shall be executed by and at the expense of the Company (except as in this section otherwise provided) who shall restore and make good to the reasonable satisfaction of the engineer the railways of the railway company which may be disturbed or interfered with in the course of such execution and so as to cause as little injury and interference as may be to and with the railways of the railway company. Provided nevertheless that if the engineer shall think it necessary in any case for the works of the Company (other than the actual laying down of mains or pipes) to be executed or carried out by the railway company such works may be executed and carried out by the railway company accordingly and the reasonable expense incurred by the railway company

in so doing shall be repaid to them by the Com- A.D. 1925.
pany :

- (6) The Company shall if required so to do by the engineer provide and maintain such stopcocks as may be reasonably necessary on any mains or pipes to be laid by the Company on over under or in any way affecting the railways of the railway company :
- (7) The Company shall bear and on demand pay to the railway company the reasonable costs of the superintendence by the engineer and of watching lighting and protecting the railways of the railway company during the carrying out of the works of the Company and the superintendence of the engineer (if given as aforesaid) shall not relieve the Company from any liability which would otherwise attach to them for any accident which might be occasioned by or through the said works or by their contractors agents or workmen :
- (8) If any injury or damage to or interruption of traffic on the railways of the railway company occasioning any actual loss to the railway company arises in any way owing to the construction or failure of the works of the Company the Company shall make full compensation to the railway company in respect thereof :
- (9) The works of the Company shall be at all times maintained in good repair by the Company and in default of their being so maintained the railway company may from time to time by notice in writing signed by the engineer and delivered at the principal office for the time being of the Company require the Company forthwith to put into good repair the works of the Company which may be in want of repair and if the Company for seven days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof the railway company without any further notice to the Company may repair the same and all expenses incurred by them in or about such repair shall be repaid to them by the Company Provided that

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in case of accidents happening or immediate danger being apprehended to the railways of the railway company by reason of the works of the Company being in want of repair the railway company may without giving such notice as aforesaid make such repairs as may be immediately necessary and the expenses of the same shall be repaid as hereinbefore provided :

- (10) The Company shall from time to time pay to the railway company any additional expenses which the railway company may reasonably incur in effecting any repair renewal widening alteration or extension of the railways of the railway company under their existing powers by reason of the existence of any mains pipes apparatus or works of the Company over across or under the railways of the railway company :
- (11) Any dispute or difference which may arise between the Company and the railway company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by the arbitration of a single arbitrator to be appointed failing agreement by the President of the Board of Trade on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

On failure of
Company
other under-
takers may
apply for
powers.

64. If after the expiration of five years from the passing of this Act the Company have not laid down mains for the supply of gas in any of the rural parishes or parts of parishes described in the First Schedule to this Act the local authority of that parish or portion of parish or any company or person may apply for an Act of Parliament or special order for the purpose of providing such a supply and for the repeal of the powers of the Company in that behalf.

PRICE QUALITY AND PRESSURE OF GAS.

Dividend
dependent
on price
charged

65. The standard price to be charged by the Company for gas supplied by them shall be one shilling and sixpence per therm Provided that the Company may

increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the gas ordinary capital as follows:—

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In respect of any half year during any part of which the price charged by the Company shall have been one-fifth of a penny or more above the standard price the dividend payable by the Company on the gas ordinary capital shall in respect of each one-fifth of a penny by which the standard price shall have been so increased be reduced below the standard rate of gas dividend by five shillings on every one hundred pounds of gas ordinary capital and so in proportion for any fraction of one hundred pounds ;

And in respect of any half year during the whole of which the price charged by the Company shall have been one-fifth of a penny or more below the standard price the dividend payable by the Company on the gas ordinary capital may in respect of each one-fifth of a penny by which the standard price shall have been reduced be increased above the standard rate of gas dividend by five shillings on every one hundred pounds of gas ordinary capital and so in proportion for any fraction of one hundred pounds :

Provided also that if at any time it is shown to the satisfaction of the Board of Trade that the costs and charges of and incidental to the production and supply of gas by the Company have substantially altered from circumstances beyond the control of or which could not reasonably have been avoided by the Company the Board may if they think fit on the application of the Company or of any local authority whose district is wholly or partly within the limits of supply by order in writing signed by a secretary or assistant secretary of the said Board correspondingly revise the standard price authorised by this Act.

66. Subject as hereinafter provided the gas supplied by the Company shall when tested in accordance with the provisions of the Gas Regulation Act 1920 be of a calorific value of not less than five hundred British thermal units and such value unless and until altered in accordance

Quality of
gas.

A.D. 1925. with the provisions of the next following section of this Act and thereafter such altered value shall for the purposes of the Gas Regulation Act 1920 be deemed to be and is hereinafter referred to as "the declared calorific value."

Date for
commence-
ment of new
basis of gas
charges.

67. The charges to be made by the Company for gas supplied by them under the powers of this Act shall have effect in respect of the charge to each consumer as from the reading of his meter for the quarter ending on the twenty-fifth day of December one thousand nine hundred and twenty-five.

Variation of
declared
calorific
value.

68. If at any time the Company intend to alter the declared calorific value they shall give notice of their intention to supply as from a date to be therein specified and being not less than three months from the date of such notice gas of such calorific value as may be declared in the notice and the calorific value so declared shall as from the date so specified be the declared calorific value for the purpose of this Act and of the Gas Regulation Act 1920 Any notice given under this section shall be published by advertisement in the London Gazette and a copy thereof shall be sent to the Board of Trade and to each of the local authorities whose respective districts are within or partly within the limits of supply and to every consumer.

Consumers'
burners.

69. If and so often as the Company shall alter the declared calorific value they shall at their own expense effect such alteration adjustment or replacement of the burners in the appliances of the consumers as may be necessary to secure that the gas can be burned with safety and efficiency except in the case of any consumer who objects to such alteration adjustment or replacement as aforesaid.

Pressure of
gas.

70.—(1) The minimum permissible pressure at which the gas may be supplied by the Company shall be such as in any main or in any pipe laid between the main and the meter having an internal diameter of two inches and upwards to balance a column of water not less than two inches in height.

(2) If the Company shall at any time declare a calorific value less than three hundred and fifty British

thermal units the minimum permissible pressure at which the gas may be supplied shall be as follows :— A.D. 1925.

Where the declared calorific value is below three hundred and fifty British thermal units and not below three hundred British thermal units the minimum permissible pressure shall be two and a half inches; and

Where the declared calorific value is below three hundred British thermal units the minimum permissible pressure shall be such pressure (not being less than three inches) as shall be prescribed by the gas referees appointed under section 4 of the Gas Regulation Act 1920.

71. The number of therms supplied to any consumer shall be ascertained by multiplying the number of cubic feet of gas registered by the consumer's meter by the number of British thermal units comprised in the declared calorific value and dividing the product by one hundred thousand. Measure of
therms
supplied.

72. The following sections or parts of sections of the Gas Regulation Act 1920 shall apply to the Company and the gas undertaking as if the provisions of this Act with respect to price quality and pressure of the gas supplied by the Company were an order made under section 1 of that Act in relation to the Company in respect of the gas undertaking namely :— Application
of Gas Re-
gulation
Act.

Subsections (1) and (2) of section 2 (Composition and pressure of gas to be supplied);

Section 4 (Appointment of gas referees and examiners);

Section 5 (Power to prescribe tests);

Section 6 (Appeals to chief gas examiner);

Subsections (3) and (4) of section 7 (Remuneration and expenses of gas referees);

Section 8 (Penalties for failure to comply with prescription of gas referees);

Section 9 (Forfeiture for deficient calorific value &c.).

A.D. 1925.

PROVISIONS RELATING TO SUPPLY OF GAS.

Gas pipes
&c. between
mains and
meters.

73. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the minimum size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's pipes and the meter so far as such pipes and fittings are intended to be covered over :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building unless it shall be agreed between the Company and the consumer that it shall be placed outside the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not

according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with : A.D. 1925.
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- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a court of summary jurisdiction against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

74. The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply gas fittings &c.

75. All gas engines stoves ranges pipes and other gas fittings let by the Company on hire or belonging to them but being upon premises of which the Company are not in possession shall whether they be or be not fixed or fastened to any part of any premises in or upon which they may be situate or to the soil under any such premises at all times continue to be the property of and be removable by the Company and shall not be subject to distress or to the landlord's remedy for rent of the premises where the same may be nor to be taken in execution under any process of a court of law or equity or any proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. Gas fittings not to be subject to distress.

A.D. 1925.

For the purposes of this section gas engines stoves ranges pipes and other gas fittings disposed of by the Company on the terms of payment by instalments shall until the whole of the instalments have been paid be deemed to be gas fittings let on hire by the Company.

Nothing in this section shall affect the amount of the assessment for rating of any premises upon which any gas engines stoves ranges pipes or other gas fittings are or shall be fixed.

Removal of fittings where supply discontinued.

76. The power to enter premises and remove pipes meters fittings instruments or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into or being in occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire all or any of the engines stoves ranges pipes meters fittings or apparatus belonging to the Company.

Anti-fluctuators to be used with gas engines.

77.—(1) The Company may by notice in writing require a consumer of gas supplied by the Company and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises upon which the engine is in use or to keep any anti-fluctuator fixed and used by the consumer in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

(2) If the consumer after any such notice as aforesaid fails to fix and use an efficient anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Company may cease to supply him with gas.

(3) The Company may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Company and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order and repair may take off remove test inspect and replace the anti-fluctuator such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an "anti-fluctuator" means an apparatus for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine. A.D. 1925.

78.—(1) Every consumer of gas supplied by the Company who uses air at high pressure for or in connection with the consumption of such gas (in this section referred to as "high-pressure air") shall if required to do so by the Company provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such air into the service pipe or any pipe through which such gas is supplied and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise. Provision of valve where high pressure air is used.

(2) It shall not be lawful for any person at any time after the passing of this Act to commence to use high-pressure air unless and until he shall have given to the Company not less than fourteen days' previous notice in writing of his intention to do so.

(3) Every person who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high-pressure air shall within one month after that date give to the Company notice in writing of such use and if within one month after the giving of such notice the Company require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high-pressure air unless before such expiration he shall have complied with the requirement.

(4) If any consumer shall fail to comply with any requirement of the Company or any obligation under this section the Company may cease to supply gas to him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction.

(5) The Company shall give notice of the effect of the foregoing provisions of this section:—

(a) (In the case of all persons who at the date of the passing of this Act are consumers of gas

A.D. 1925.

supplied by the Company) on or with the demand notes for gas charges payable to the Company issued next after that date; and

(b) (In the case of any person becoming after the passing of this Act a consumer of gas supplied by the Company) on or with the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The Company shall have access at all reasonable times to all premises supplied by them with gas in or upon which high-pressure air is used or the Company have reason to believe that high-pressure air is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The Company shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the Company if the valve or other appliance be found efficient and in proper order but otherwise at the expense of the consumer.

Period of
error in
defective
gas meters.

79. In the event of any meter used by a consumer of gas being tested in manner provided by the Gas Regulation Act 1920 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Relief from
obligation to
supply.

80. Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Company is in the opinion of an arbitrator appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the area of

A.D. 1925.

- (a) a new supply of gas for the premises of any person demanding such supply at any time after the passing of this Act; or

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Company Provided that the foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the Company—

- (i) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Company may reasonably require;
or

(according as the Company may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the Company in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Company may reasonably demand. Provided also that if any question shall arise under the provisions of this section between the Company and the applicant as to the sufficiency of the distribution works of the Company or as to whether such new or increased supply would necessitate the

A.D. 1925. — laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the Company or as to the nature or amount of the security demanded by the Company such question shall be referred to and determined by an arbitrator to be appointed (failing agreement between the Company and the applicant) by the Board of Trade on the application of either party after notice in writing to the other of them and the decision of such arbitrator shall be final and binding. Provided also that in determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say) :—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Company may be called upon to supply gas to the applicant;
- (b) the capital expenditure which the Company would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply and how far such capital expenditure may become unproductive to the Company in the event of the cesser of the new or increased supply.

Subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any arbitration under this section.

Supply of
gas where
consumer
has a
separate
supply.

81. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive for the purposes of a stand-by supply only from the Company a supply of gas for any premises having a separate supply of gas or a supply (in use or ready for use for the purposes for which the stand-by supply of gas is required) of electricity steam or other form of energy unless he has agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure incurred by them in providing such stand-by supply and will cover other

standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum so to be paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889. A.D. 1925.

82. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Refusal of supply to persons in debt for gas for other premises.

83. At least twenty-four hours' notice shall be given to the Company by every consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual date for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company. Gas consumers to give notice before removing.

84.—(1) In any case in which the Company are by virtue of this Act or any Act partially incorporated therewith authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847 : As to mode of cutting off gas supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

A.D. 1925.

(2) For the purposes of this section the Company (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) shall have and may exercise the like powers of entry as are exerciseable under that section.

Power to
take licences
for use of
patents.

85. The Company may subject to the provisions of this Act but only for the purposes of the undertaking and not so as to acquire any exclusive right therein contract for take and use any licence or authority granting any right or privilege of working using or vending any invention subject to letters patent in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of residual products obtainable in or arising from such manufacture or from the materials used therein.

ELECTRICITY.

Power to
use land
for generat-
ing station.

86. The Company may use the land described in the Second Schedule to this Act for the purposes of the electricity undertaking authorised by this Act and may thereon erect construct maintain work and use a generating station or stations together with all such buildings works pipes channels engines batteries dynamos accumulators and other plant machinery apparatus works and conveniences as may be suitable or necessary for generating electricity for the purpose of giving a supply under this Act :

Provided that nothing in this section shall relieve the Company from the necessity for obtaining the consent of the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 to the erection or construction of any such station as aforesaid.

As to cross-
ings of rail-
ways and
tramways.

87. The provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they relate to the breaking up of tramways or railways where laid across or along any highway on the level or the roadway of or approaches to any bridge over any railway within the limits of supply shall not apply to the Company.

Power to
lay electric
lines &c.

88. The Company may on the application of the owner or occupier of any premises within the limits of

supply abutting on any street laid out or made but not dedicated to public use supply such premises with electricity and may lay down take up alter relay or renew in across or along such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1922 and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Company under the powers of this section. Provided that the Company shall not exercise the powers under this section with respect to any street belonging to the Southern Railway Company except with the consent of the railway company which consent shall not be unreasonably withheld.

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—
in private
streets.

89.—(1) Nothing in this Act shall in any way limit or affect the powers of the East Sussex County Council (in this section referred to as “the council”) to rebuild alter widen or repair the structure of any bridge upon which any work by this Act authorised shall be constructed or impose upon the council any liability which was not by law imposed upon them prior to the passing of this Act.

For further
protection
of East
Sussex
County
Council.

(2) If at any time the council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the electricity undertaking they shall prior to the commencement of such works give to the Company fourteen days’ notice in writing of their intention to carry out such works and if in order to avoid interruption to the supply by the Company of electrical energy it is in the opinion of the council necessary temporarily to remove the mains and other electrical appliances belonging to the Company from such bridge then the Company shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the

A.D. 1925. Company shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) The Company may subject to and in accordance with the provisions of section 15 of the schedule to the Electric Lighting (Clauses) Act 1899 break up the main roads specified in the Third Schedule to this Act so far as the same are situate within the limits of supply.

(5) No electric line shall be placed by the Company above ground within the limits of supply along or across any county bridge or any main road vested in the county council or any roadside waste adjacent thereto without the consent in writing of the county council under the hand of their clerk unless the Minister of Transport consents to the placing of such line above ground and the said Minister before giving his consent shall give the county council an opportunity of being heard.

(6) If any difference at any time arises between the council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed by the Minister of Transport on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

For protection of
Ashdown
Forest.

90.—(1) Notwithstanding anything in this Act contained the Company shall not without the previous consent of the conservators for the time being of Ashdown Forest signified in writing under the hand of their clerk place any electric line above ground within the limits of Ashdown Forest. Provided that nothing in this section contained shall prevent the Company from placing and the conservators aforesaid shall not object to the placing and maintaining of any electric line above ground over or alongside that portion of the main road from Maresfield to Nutley which is situate within such limits.

(2) For the purposes of this section the limits of Ashdown Forest means the limits of that forest shown upon the map annexed to the award made by William Augustus Raper on the twenty-eighth day of March one thousand eight hundred and eighty-seven pursuant

to the provisions of the Inclosure Acts 1845 to 1878 and the Order scheduled to the Commons Regulation (Ash-down Forest) Provisional Order Confirmation Act 1885. A.D. 1925.

91. The streets and parts of streets throughout which the Company is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the passing of this Act as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Fourth Schedule to this Act. Compul- sory works.

92. The Company may purchase sell let for hire fix repair and remove but shall not manufacture electric lines fittings apparatus and appliances for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply electrical fittings.

93.—(1) If at the expiration of three years from the passing of this Act suitable and sufficient distributing mains shall not have been laid down in any rural parish forming part of the limits of supply and not mentioned in the Fourth Schedule to this Act the Minister of Transport may if he thinks fit revoke the powers of this Act in regard to the supply of electricity in respect of the whole or part of such parish where such mains shall not have been laid. Provision for cesser of powers where no mains laid.

(2) Nothing in this section shall be construed as affecting the power of the Minister of Transport to revoke the powers of this Act in regard to the supply of electricity under the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899.

94. The maximum prices which may be charged within the limits of supply by the Company as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fifth Schedule to this Act. Maximum prices.

95. In the event of a meter of a construction and pattern approved by the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed Period of error in defective electricity meters.

A.D. 1925. — to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Company.

PROVISIONS COMMON TO GAS AND ELECTRICITY.

Company may contract for supply and purchase in bulk.

96. The Company may contract with any local authority company or persons for the supply by the Company to them or for the supply to the Company by them of gas or electricity in bulk upon such terms and conditions as may be agreed upon and for those purposes may exercise the powers by this Act conferred upon them with respect to the breaking up of streets for the purposes of laying gas pipes and electric lines respectively :

Provided that the Company shall not under the provisions of this section enter into any contract for the supply of electricity with any local authority company or person who is not authorised to supply electricity within an area of supply nor without the approval of the Electricity Commissioners first had and obtained :

Provided also that the Company shall not supply gas or electricity under any such contract beyond the limits of supply if and so long as such supply would interfere with the supply of gas or electricity within those limits.

Notice to discontinue supply.

97. A notice to the Company from a consumer for the discontinuance of a supply of gas or electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Expenses of reconnecting discontinued gas or electricity supply.

98. In any case in which in consequence of any default on the part of the occupier of any premises the Company have cut off the supply of gas or electricity to such premises and the occupier so in default shall desire to resume the supply so cut off he shall pay to the Company the expenses of reconnecting the supply and the

Company shall not be under any obligation to supply gas or electricity to such occupier until he shall have made good the default and paid such expenses. A.D. 1925.
—

99. The Company may purchase or take on lease houses and cottages for any of their employees and offices and showrooms for the purposes of their undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Company. Dwelling-houses for employees offices &c.

100. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Second Schedule to this Act any lands and hereditaments not exceeding in the whole seven acres which the Company may from time to time require for the purposes of the undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products or the generation of electricity except the lands described in the Second Schedule to this Act. Purchase of lands by agreement for undertaking.

101. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

102. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such period as they think fit or otherwise dispose of any lands or property for the time being belonging to them and which may not at the time be required for the purposes of their undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interests in or Power to sell and lease lands.

A.D. 1925. reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

MISCELLANEOUS.

Power to
directors to
make dona-
tions sub-
scriptions
&c.

103. The directors may subscribe or make donations to infirmaries or hospitals and to convalescent homes and similar institutions and to any industrial exhibitions relating to any of the objects of the Company and to benevolent and sick funds of the employees of the Company and may for any of these purposes apply the revenues of the Company.

Power to
grant pen-
sions &c.

104.—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employee of the Company or where in their opinion adequate provision is not otherwise made to the widow or family or any dependant of any such employee.

(2) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the revenues of the Company.

(3) In this section the word "employee" includes any officer or servant.

Receipt in
case of per-
sons not sui
juris.

105. If any money is payable to a stockholder debenture holder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Authentica-
tion and
service of
notices by
Company.

106. Any notice to be served by the Company on a person supplied with gas or electricity shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or electricity

or gas or electricity fittings by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a pre-paid letter addressed to him by name at his last known or usual place of abode or business or if the place of abode or business of the person to be served is after proper inquiry unknown it shall in the case of any notice (not being a notice to pay any charge) be sufficient to deliver the notice to some resident of the premises supplied or if the premises be unoccupied to affix the notice or a copy thereof upon some conspicuous part of the premises.

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 —

107. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

108. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

109. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas or electricity which may be passed in this or any future session of Parliament.

Saving for general Acts.

110. The Company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be

Copy of Act to be registered.

A.D. 1925. recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Partial re-
peal of
powers of
Crow-
borough
District Gas
Company.

111. As from the passing of this Act the rights powers and authorities of the Crowborough District Gas Company (in this section referred to as "the Crowborough Company") to supply gas and electricity in the portions of the parishes of Buxted and Hadlow Down described in the First Schedule to this Act shall cease and determine and so much of the Crowborough District Gas Act 1899 and the Crowborough District Gas and Electricity Act 1913 as authorises the Crowborough Company to supply gas and electricity or either of them in those portions of those parishes is hereby repealed.

Costs of Act.

112. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing A.D. 1925.
Act.

FIRST SCHEDULE.

LIMIT OF GAS AND ELECTRICITY SUPPLY (SECTION 57).

PART I. (GAS AND ELECTRICITY).

The urban district of Uckfield.

The parishes of Framfield Little Horsted Isfield Fletching Danehill and Maresfield and so much of the parish of Buxted as lies within a distance of three miles and so much of the parish of Hadlow Down as lies within a distance of three miles and one quarter of another mile from the centre of the railway level crossing on the London to Eastbourne and Lewes main road in the urban district of Uckfield.

The parish of Newick and the portion of the parish of Barcombe known as "Barcombe detached" in the rural district of Chailey.

PART II. (ELECTRICITY ONLY).

The parish of Barcombe (other than the portion of that parish known as "Barcombe detached") and the parish of Chailey in the rural district of Chailey.

SECOND SCHEDULE.

LANDS FOR GASWORKS AND GENERATING STATION (SECTIONS 58 AND 86).

(a) The piece of land numbered 257a on the $25\frac{1}{100}$ Ordnance map edition 1910 Sussex (East) sheet XL-4 for the parish of Uckfield on which are erected the existing gasworks and buildings of the Limited Company containing 3 roods 1 perch or thereabouts and bounded on or towards the north by the Southern Railway (Brighton section) and on all other sides by land of Richard James Treatfeild.

(b) the piece of land containing 2 acres and 2 roods or thereabouts bounded on or towards the north in part by the said enclosure numbered 257a and in other part by the said railway and

A.D. 1925. being that part of the enclosures numbered 256 and 258 on the same Ordnance map which lies between imaginary straight lines drawn parallel to the eastern boundary of the said enclosure numbered 257a and at a distance of 220 feet to the east and 330 feet to the west of that boundary respectively.

THIRD SCHEDULE.

MAIN ROADS WHICH THE COMPANY ARE AUTHORISED TO BREAK UP FOR THE PURPOSES OF GENERAL ELECTRICITY SUPPLY (SECTION 89).

So much of the following roads shown on sheet 39 of the Ministry of Transport road map as are within the limits of supply:—

Class I. roads—

- No. 26 From Lewes to Crowborough.
- No. 22 From East Hoathly to Forest Row.
- No. 275 From Lewes to Wych Cross.
- No. 272 From Piltdown to Haywards Heath.
- No. 265 From Lewes to Cross in Hand.

Class II. roads—

- No. 2102 From Hadlow Down to Piltdown.
- No. 2026 From Maresfield to Hartfield.

FOURTH SCHEDULE.

List of streets and parts of streets throughout which the Company are to lay down reasonably suitable and sufficient distributing mains for the purposes of general electricity supply within the period specified in the foregoing Act (section 91):—

London Road High Street High Street (Newtown) Church Street Framfield Road in the urban district of Uckfield Framfield Street from Hare and Hounds Inn to the school in the parish of Framfield London Road for a distance of 75 yards northwards and High Street for a distance of 120 yards southwards of the Cross Roads Maresfield in the parish of Maresfield High Street from the railway station in the parish of Buxted to Pound Green in the parish of Hadlow Down High Street southwards of North Lodge and Church Road northwards of the Hermitage (formerly the rectory) in the parish of Newick.

FIFTH SCHEDULE.

A.D. 1925.

MAXIMUM PRICES (SECTION 94).

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Company charge the consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

- (a) In respect of the quarters ending thirty-first of March and thirty-first of December For any amount up to fifteen units twelve shillings and sixpence and for each unit over fifteen units tenpence;
- (b) In respect of the quarters ending thirtieth of June and thirtieth of September For any amount up to ten units eight shillings and fourpence and for each unit over ten units tenpence.

SECTION 2.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the respective rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the regulations of the Electricity Commissioners.

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